IN THE HIGH COURT OF ORISSA AT CUTTACK

JCRLA No.28 of 2017

In the matter of an Appeal under section 383 of the Code of Criminal Procedure, 1973 and from the judgment of conviction and order of sentence dated 28th May, 2016 passed by the learned Additional Sessions Judge, Nabarangpur in C.T. No.10 of 2016(T).

Rabi Jani ... ***Appellant***

-versus-

State of Orissa ... ***Respondent***

Appeared in this case by Hybrid Arrangement (Virtual/Physical Mode):

For Appellant - Mr.Pulakesh Mohanty, Advocate

For Respondent - Mr.S.S. Kanungo Addl. Government Advocate

CORAM:
MR. JUSTICE D.DASH
DR. JUSTICE S.K. PANIGRAHI

Date of Hearing : 16.05.2023 : Date of Judgment: 21.06.2023

D.Dash,J. The Appellant, by filing this Appeal from inside the jail, has assailed the judgment of conviction and order of sentence dated 28.05.2016 passed by the learned Additional Sessions Judge, Nabarangpur in C.T. No.10 of 2016(T) arising out of G.R. Case No.842 of 2015 corresponding to Papadahandi P.S. Case No.135 of 2015 of the Court of the learned Sub-Divisional Judicial Magistrate (S.D.J.M.), Nabaranghpur.

The Appellant (accused) thereunder has been convicted for commission of offence under sections 302 of the Indian Penal Code, 1860 (for short, 'the IPC'). Accordingly he has been sentenced to undergo imprisonment for life and pay fine of Rs.10,000/- (Rupees Ten Thousand) with the default stipulation to undergo rigorous imprisonment for one year.

2. Prosecution case is that on 05.09.2015, the Informant-Rama Jani (P.W.13) hearing the shout of the mother of the accused-Sukaldei Jani (deceased) went to the house of the accused, who was residing nearby. Arriving at the house of the accused, Rama (P.W.13) saw the accused slitting the throat of his mother by means of a Katari (knife). At the sight of Rama (P.W.13), the accused took to his heels by leaving that Katari (knife) at the place. The accused was chased and nabbed by Rama (P.W.13) with the assistance of co-villagers, namely, Somanath Jani (P.W.1) and Dhansai Jani (P.W.2). The accused was then brought to the spot where the deceased was lying dead with profuse bleeding injuries. It is stated that the accused used to quarrel with his mother and assault frequently for not meeting his illegal demand of money for consumption of liquor. Rama Jani (P.W.13) then lodged a written report with the Inspector-in-Charge (I.I.C.), Papadahandi Police Station on 05.09.2015. The I.I.C. receiving the written report treated the same as F.I.R. (Ext.7) and upon registration the case took up investigation. He examined the Informant (P.W.13) and other witnesses. He also visited the spot. Having held inquest over the dead body of the deceased and preparing the report (Ext.3), he sent the dead body for post mortem examination by issuing necessary requisition to that effect. The wearing apparels of

the deceased were seized after post mortem examination. The nail clippings of he accused collected by the Medical Officer with his wearing clothes were also seized. The statement of P.W.13 on the requisition of the Investigating Officer (P.W.16) was recorded by the learned Magistrate under section 161, Cr.P.C.

On completion of investigation, Final Form was submitted placing the accused to face the Trial for commission of offence under section 302 of the IPC.

3. Learned S.D.J.M., Nabarangpur, on receipt of the above report, took cognizance of the said offence and after observing the formalities, committed the case to the Court of Sessions for Trial. That is how the Trial commenced by framing the charge for the above offence against this accused.

4. In the Trial, the prosecution has examined in total seventeen (17) witnesses. Out of them, as already stated, P.W.13 is the Informant and his wife is P.W.7. The post occurrence witnesses are P.W.1 to 6 whereas P.W.8 to 12 and 15 are the witnesses to the seizure. The F.I.R. (Ext.1) lodged by P.W.13, which has been admitted in evidence and marked Ext.7 being scribed by another, that scribe has come to the witness box as P.W.14. The Medical Officer, who had conducted the Post Mortem Examination over the dead body of the mother of the accused, is P.W.17 whereas the I.O. is P.W.16.

Besides the oral evidence, being piloted through the above witnesses; the prosecution has also proved certain documents, which have been admitted in evidence and marked Exts.1 to 12. Importantly, out of those are the FIR marked Ext.7 and the inquest as well as Post

Mortem Examination Report, which are Ext.3 and 12 respectively. The Chemical Examiner's Report has been admitted in evidence and marked Ext.11 whereas the other documents are the seizure list, police requisition etc.

5. The plea of the defence is that of complete denial. In the Trial, the accused has not led any evidence in support of his case.

6. The Trial Court, upon examination of the evidence of P.W.17, the Doctor, who had conducted the autopsy over the dead body of the mother of the deceased and on going through his report (Ext.12) as well as the other evidence on record such as that of P.W.17, the I.O. , who had held inquest over the dead body of the deceased and had noted the injuries in the report in his own language as well as the evidence of other witnesses has come to the conclusion that the mother of the accused met homicidal death. Having said so, reliance upon the evidence of P.W.7 and P.W.13 which have been corroborated by the other evidences of P.W.1 and 2 has held the accused guilty for commission of offence under section 302 of the I.P.C.

7. Learned counsel for the Appellant (accused) submitted that the evidence of the prosecution witnesses, who are highly interested in the success of the prosecution ought not to have been accepted without being put to, strict scrutiny from every possible angle and testing the same with the other evidence with regard to the material particulars. He further submitted that the evidence of P.W.13 and P.W.7 when read as a whole do not lead to believe for a moment that they had seen the accused slitting the throat of his mother (deceased) and therefore, the

evidence coming from the evidence of P.W.1 and 2 even when accepted do not come to the aid of the prosecution case.

8. Learned counsel for the Respondent-State submitted that the evidence of the prosecution witnesses is quite consistent with one another as to how the incident took place and what role the accused played therein. He further submitted that the evidence of the prosecution witnesses that no sooner did they arrive in the house of the accused, they saw the accused running away leaving that Katari (knife) at the spot near the dead body of his mother, who was then lying with profuse bleeding injury is enough to come to a definite conclusion on the complicity of this accused attributing the authorship of that fatal injury on the throat of the deceased.

The Doctor, who conducted the autopsy over the dead body of the deceased who happens to be the mother of the accused, is P.W.17. He has stated to have noticed one lacerated looking incised wound having size 4'' X 3'' X bone deep transversely present on anterior neck. The trachea, oesophagus, larynx, pharynx, large vein and arteries of neck, muscles of neck reaching upto cervical vertebra were cut. He has pin pointedly stated that such injuries are possible by a sharp cutting weapon. According to him, the injuries are ante mortem in nature and it was a homicidal death taking place within 12 to 18 hours from his examination. He has stated that such injuries which he noticed were sufficient to cause the death of a person. Having examined the Katari (knife) in course of investigation, he states to have given opinion that with such knife, the injuries noticed on the deceased were possible. He had given his report to that effect which has been admitted in evidence

and marked Ext.9/2. The evidence of this witness has not been questioned in any manner.

Besides the above, we find the evidence of the Investigating Officer (P.W.17), who too had noted the injuries on the neck of the deceased on the inquest report indicating in his own language and that has been proved as Ext.3. The evidence of other witnesses is also stand to the effect that they had seen the deceased lying with profuse bleeding injuries on her neck. All these evidence have remained unchallenged during the Trial and that has also been the situation before us. With such overwhelming evidence, we find no difficulty in concurring with the finding of the Trial Court that the nature of death of the deceased (mother of the accused) was homicidal.

9. Having said as above, now it stands for being answered as to who is the author of the crime. The star witness for the prosecution is P.W.13. He is the Informant and has proved the F.I.R. (Ext.7). It is his evidence that in the morning hour on that relevant date, he was in his house and was preparing to go out for walk when he heard the groaning sound of the deceased (mother of the accused). It is stated that he having gone to the place saw the accused dealt a forceful blow on the throat of the deceased by means of a Katari. He further submits that seeing him, the accused started running. It is also stated that receiving the Katari blow, the deceased fell down on the ground and he then having gone near her, found her dead. It is next stated that as the accused ran towards the village forest, he having chased, could apprehend him at a distance and the accused was nabbed with the assistance of P.W.1 and P.W.2. It has also been stated by this witness that the wearing apparels of the

accused were then stained with blood. This P.W.1 having been cross-examined at length, we find no such discrepancies in his evidence nor it is inconsistent with the evidence of P.W.1 and P.W.2, who have appeared at the scene later and assisted this P.W.13 in ultimately nabbing the accused, who was being chased by P.W.13. It is stated by P.W.1 that on that day around 8 a.m., he saw the accused running at the village road and P.W.13 chasing him and, therefore, he detained the accused to enquire the matter. He further stated that the wearing shirts, arms and face of the accused were stained with human blood. It is his further evidence that he and P.W.13 took the accused to his house where he saw the deceased who is the mother of the accused lying dead in a pool of blood in the kitchen. He has further stated to have seen the throat of the deceased to have been slitted by a sharp edged weapon and that Katari (knife) to have been stained with blood was lying near the dead body. P.W.2 also stated in the same vein, which is wholly consistent with the evidence of P.W.1 and that also is consistent with the second part of the incident as has been stated by P.W.13. Despite cross-examination, we find that the evidence of P.W.1 and P.W.2 have not only remained unshaken but no such material has been elicited from them when there stands no reason to view their testimony with suspicion. In addition to the above, it is the statement of P.W.1 that the accused had in clear terms had confessed before him, P.W.13 and others that he had slitted the throat of the deceased and killed her when she refused to pay him money for consuming the liquor. Of course, P.W.13 does not state so. But that has been stated by P.W.2. Even if we are not impressed to accept the evidence of the prosecution as regards the extrajudicial confession said to have been made by him before P,W.1

and P.W.2 and other villagers for the reason that by then the accused had been nabbed and kept under detention as the ocular testimony of P.W.13 receives full corroboration from the evidence of P.W.1 and 2 as well as the evidence of the Doctor (P.W.16), in the absence of any sort of explanation coming from the side of the accused, we are led to hold that the prosecution through clear, cogent and acceptable evidence has established the charge against the accused for having intentionally caused the death of his mother by slitting her throat by means of a knife. Consequently, we held that the accused is liable for commission of offence under section 302 of the I.P.C..

10. In the result, the Appeal stands dismissed. The judgment of conviction and order of sentence dated 28th May, 2016 passed by the learned Additional Sessions Judge, Nabarangpur in Criminal Trial No.10 of 2016 are hereby confirmed.

(D. Dash)
Judge.

Dr. S.K. Panigrahi I agree.

(Dr.S.K. Panigrahi)
Judge.

True Copy

Sr.Steno

Himansu